FELIX MUGADZA
versus
CATHRINE SHIRIDZINONWA MUPERERE

HIGH COURT OF ZIMBABWE
MUZENDA J
MUTARE, 29 June and 16 July 2026

OPPOSED APPLICATION FOR CONDONATION: REASONS FOR THE ORDER

MUZENDA J:

1. On 10 March 2016 applicant applied for condonation of late noting of an appeal and for extension of time within which to note an appeal. After respondent was served, she opposed the chamber application. The matter was then set down on the opposed motion and after hearing the parties I declined the application. Applicant now requests for reasons. These are they:
2. In his founding affidavit applicant contends that he delayed by 8 months to approach the court seeking this court's indulgence. He added that after the initial appeal was struck off by an appeal court, he left the country and communication between him and his lawyers was poor. He has also financial problems. However, to applicant the period was not inordinate. On the prospects of success applicant averred that he has very bright prospects of success on appeal and directed this court to the draft of the Notice and grounds of appeal.
3. In opposing the application respondent impugned the application as delayed and the proffered explanation as inadequate. To prove that applicant was outside the country no documents were filed by the applicant, the explanation therefore remains unsubstantiated and hence applicant had failed to establish good and sufficient cause for non-compliance.
4. On the prospects of success on appeal respondent pointed out that the intended appeal does not disclose such glorious chances of success. Respondent condemns the grounds of appeal

as fatally defective for they fail to identify in precision any material misdirection on the part of the lower court. Respondent further characterizes the grounds of appeal as vague argumentative and repetitive. The grounds suffer from the format and they do not hold prospects of success. Respondent prays for the refusal of the application with costs.

5. Its now settled law that the aspect of legal requirements for condonation is the extent of the delay, the explanation thereto, prospects of success on appeal and prejudice to the other parties. (*Garralt Trust* v *Creative Credit (Pvt) Ltd* SC 146/26) matter cited by the respondent where the Superior Court reiterated that condonation is granted where good and sufficient cause is shown.
6. On 29 of February 2024, the court *a quo* found that the following issues were largely common cause that the land in dispute initially belonged to applicant's dynasty, that a member of that Mugadza family sold a portion to the respondent, that applicant was not the only surviving child of his late father but that his sibling (Barnabas) was alive at the time respondent got the piece of land. It was further common cause that the village head is a relative to applicant. On the place occupied by the respondent there is a Kraal, a seven roomed house, a plantation of gum trees which demarcates adjacent homesteads. It was also found by the lower court that local authorities had already declared the piece of land as belonging to respondent. The court *a quo* lamented the shortcomings of applicant's evidence during the hearing and observed that applicant failed to produce levy receipts to prove ownership and after hearing evidence the court came to a conclusion that the subject piece of land had been lying idle for 36 years. It was also added that the matter came to the Magistrates on appeal from the Chief's Court and the Chief had ruled in favour of the respondent. The chief endorsed respondent as the legitimate user of that piece of land.
7. An examination of the decision of the court *a quo*, reasons given for the ruling captures what happened in the court *a quo*. I am unable to fault the reasoning of the magistrate. If indeed there was a misdirection by the trial court, then the draft appeal fails to craft such imprecisely alleged misdirection. The diverse effect of such a failure affects prospects of success on appeal. The delay is inordinate and the explanation is defensive than revealing and given the judgment of the court *a quo* and the crafted grounds, there are no prospects

of success on appeal. Using my discretion I then came to a conclusion that I cannot grant the applicant the indulgency and declined the application with costs.

Mugadza Chinzamba and Partners, *Applicant's Legal Practitioners*

Mhungu and Associates, *Respondent's Legal Practitioners*